Syllabus

NOTE: Where it is feasible, a syllabus (headnote) will be released, as is being done in connection with this case, at the time the opinion is issued. The syllabus constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States* v. *Detroit Timber & Lumber Co.,* 200 U. S. 321, 337.

SUPREME COURT OF THE UNITED STATES

Syllabus

UNITED STATES POSTAL SERVICE ET AL. *v.* KONAN

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–351. Argued October 8, 2025—Decided February 24, 2026

Respondent Lebene Konan and the local post office in Euless, Texas, had an extended dispute concerning mail delivery to two rental properties owned by Konan. Konan alleged that, among other things, United States Postal Service employees intentionally withheld her mail and interfered with its delivery. After administrative complaints proved unsuccessful, Konan sued the United States in federal court, bringing various state-law tort claims alleging that the United States Postal Service intentionally and wrongfully withheld her mail. The District Court dismissed Konan's complaint pursuant to the Federal Tort Claims Act's postal exception, under which the United States retains sovereign immunity for all claims "arising out of the loss, miscarriage, or negligent transmission of letters or postal matter," 28 U. S. C. §2680(b). The District Court concluded that the United States enjoys sovereign immunity from Konan's claims because they all relate to personal or financial harms arising from nondelivery of mail. The District Court further held that the postal exception is not limited to merely negligent failure to properly carry the mail. The Fifth Circuit reversed, holding that the terms "loss," "miscarriage," and "negligent transmission" do not encompass the intentional act of not delivering the mail at all. In contrast, the First and Second Circuits have interpreted the postal exception to apply to suits even when they arise from harms caused by intentional misconduct. The Court granted certiorari to resolve the split.

Held: The United States retains sovereign immunity for claims arising out of the intentional nondelivery of mail because both "miscarriage" and "loss" of mail under the FTCA's postal exception can occur as a

result of the Postal Service's intentional failure to deliver the mail. Pp. 5–13.

(a) The postal exception reflects Congress's judgment that redress for "harms" of "the sort primarily identified with the Postal Service's function of transporting mail throughout the United States" should not come from potentially burdensome tort suits. *Dolan* v. *Postal Service*, 546 U. S. 481, 489. Pp. 5–6.

(b) Both "miscarriage" and "loss" of mail under the postal exception can occur as a result of the Postal Service's intentional failure to deliver the mail. Pp. 6–11.

(1) The Court interprets statutory terms according to the ordinary meanings they had when they were enacted. *Wisconsin Central Ltd.* v. *United States*, 585 U. S. 274, 277. When Congress enacted the FTCA in 1946, the "miscarriage" of mail ordinarily included any failure of mail to properly arrive at its intended destination. Dictionaries published around that time confirm that a "miscarriage" of mail happened when mail failed to arrive at its destination. The Court declines to limit "miscarriage" to negligent failures, as no dictionaries cited impose this limitation, and ordinary speakers used "miscarriage" to refer to problems with mail caused by intentional misconduct, such as when mail was stolen or burned. The Court also declines to limit "miscarriage" to when mail goes to the wrong address, as speakers used the term when mail failed to reach its intended destination regardless of where the mail ended up, including when mail was delayed, came too late, or was left in the post office. Pp. 6–8.

(2) When Congress enacted the FTCA, the "loss" of mail ordinarily meant a deprivation of mail, regardless of how the deprivation was brought about. Contemporary dictionaries defined "loss" as the act or fact of losing or suffering deprivation, and one can suffer a deprivation of something when another intentionally keeps that thing for himself. Konan alleged that she was entitled to possession of her mail but that the Postal Service converted it, meaning she was "deprived of the use and possession of the property," Black's Law Dictionary 421, so her claims arise out of the loss of her mail. The Court disagrees with the attempt by Konan to limit "loss" to only inadvertent losses. A loss can be the result of another person's intentional misconduct, and ordinary speakers commonly described a "loss" of mail from theft, including theft by the carrier. The Court also disagrees with the argument that the postal exception applies only when the Postal Service *lost* the mail, because Congress applied the postal exception to all "claim[s] arising out of the loss, miscarriage, or negligent transmission" of mail, describing kinds of harms, not kinds of actions by the postal workers. This interpretation is consistent with the principal provision of the FTCA, which includes losses caused by intentional misconduct and does not

require that the Government lost anything. The Court rejects Konan's proposal to limit "loss" to only "destruction." Ordinary speakers referred to losses of mail even when the mail was not destroyed, and the dictionary definitions Konan pointed to were listed first because they were the oldest, not because they were primary. Pp. 8–11.

(c) The Court rejects Konan's remaining arguments that her claims must not be barred by the postal exception. Pp. 11–13.

(1) Konan argues that the postal exception's "negligent transmission" category narrows the meaning of "miscarriage" and "loss," but Congress intentionally limited the "negligent" qualifier to "transmission" and did not use it to qualify "loss" or "miscarriage." An adjective before the final noun in a list cannot be transplanted to qualify the preceding nouns. See *Barnhart* v. *Thomas*, 540 U. S. 20, 26. The Court does not think that the "negligent" qualifier suggests that Congress was trying to enable suits involving intentional misconduct. Instead, the inclusion of "negligent" to qualify "transmission" forecloses claims involving mail even though nothing went wrong with its transport or delivery, keeping the focus of the postal exception on mail-delivery problems. Pp. 11–12.

(2) Konan also argues that the Court's interpretations of "miscarriage" and "loss" run afoul of the presumption against surplusage, because many claims—including Konan's here—will arise from both a "miscarriage" and a "loss" of mail. But Konan's proposal to solve the surplusage—three nonoverlapping definitions of the statutory terms—is inconsistent with ordinary meaning, which shows that these terms are often used in an overlapping manner. In *Dolan*, the Court interpreted the terms in the postal exception to substantially overlap, 546 U. S., at 487, and the canon against surplusage is subordinate to the cardinal canon that "a legislature says in a statute what it means and means in a statute what it says there," *Connecticut Nat. Bank* v. *Germain*, 503 U. S. 249, 253–254. Congress likely used broad, overlapping terms to better keep complaints about mail delivery out of court. Pp. 12–13.

(d) The Court does not decide whether all of Konan's claims are barred by the postal exception, or which arguments Konan adequately preserved. P. 13.

96 F. 4th 799, vacated and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, KAVANAUGH, and BARRETT, JJ., joined. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN, GORSUCH, and JACKSON, JJ., joined.